

SENATE BILL No. 64

DIGEST OF INTRODUCED BILL

Citations Affected: IC 5-28-44.

Synopsis: Call center worker and consumer protection. Requires an employer to notify the Indiana economic development corporation (IEDC) if the employer intends to relocate a call center. Requires, for all contracts entered into or renewed on or after July 1, 2026, that all call center or customer service work for the state be performed entirely within the United States. Requires the IEDC to compile a list of all employers that relocate a call center to a foreign country and to disqualify employers on that list from state grants, loans, and tax credits.

Effective: July 1, 2026.

Niezgodski

December 8, 2025, read first time and referred to Committee on Pensions and Labor.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 64

A BILL FOR AN ACT to amend the Indiana Code concerning state and local administration.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-28-44 IS ADDED TO THE INDIANA CODE AS
2 A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]:

4 **Chapter 44. Consumer Call Center Employee Protection**

5 **Sec. 1. As used in this chapter, "employer" means a business**
6 **that employs, for the purpose of customer service or back-office**
7 **operations, either of the following:**

8 (1) Fifty (50) or more individuals, excluding part-time
9 employees.

10 (2) Fifty (50) or more individuals who, in the aggregate, work
11 at least one thousand five hundred (1,500) hours each week
12 for the employer, not including overtime hours.

13 **Sec. 2. As used in this chapter, "grant" has the meaning set**
14 **forth in IC 5-28-28-2.**

15 **Sec. 3. As used in this chapter, "loan" has the meaning set forth**
16 **in IC 5-28-28-3.**

17 **Sec. 4. As used in this chapter, "part-time employee" means an**



individual employed by an employer for an average of fewer than twenty (20) hours each week or for fewer than six (6) of the twelve (12) months before the date on which a determination is made.

Sec. 5. As used in this chapter, "tax credit" has the meaning set forth in IC 5-28-28-4.

Sec. 6. (a) An employer that intends to relocate either of the following from Indiana to a foreign country shall notify the secretary of commerce at least one hundred twenty (120) days before the relocation:

(1) A call center.

(2) One (1) or more facilities or operating units within a call center comprising at least thirty percent (30%) of the call center's total volume when measured against the previous twelve (12) month average call volume of operations.

(b) If an employer fails to provide the notice under subsection (a), the employer is ineligible to receive from the state any grant, loan, or tax credit until seven (7) years after the date on which the employer relocated the operation or facility described in subsection (a).

Sec. 7. (a) Beginning July 1, 2026, and every six (6) months thereafter, the corporation shall compile a list of every employer that has relocated an operation or facility described in section 6(a)(1) or 6(a)(2) of this chapter.

(b) The corporation shall include on the list the name of the employer and the date on which the call center or facility was relocated.

(c) The corporation shall immediately notify each state agency that is providing the employer with any grant, loan, or tax credit.

(d) The corporation shall include the list in the economic incentives and compliance report required by IC 5-28-28.

Sec. 8. (a) Except as provided in subsection (c), an employer that appears on a list compiled by the corporation under section 7 of this chapter is ineligible to receive from the state any grant, loan, or tax credit until five (5) years after the date on which the employer relocated the operation or facility described in section 6(a)(1) or 6(a)(2) of this chapter.

(b) Except as provided in subsection (c), if an employer appears on a list compiled under section 7 of this chapter, the corporation shall recapture from the employer an amount equal to the unamortized value of any grant, loan, or tax credit that the employer has received from the state after June 30, 2026. The employer shall pay the recapture amount to the corporation within



thirty (30) days after receiving the recapture demand.

(c) The corporation may waive the ineligibility to receive from the state any grant, loan, or tax credit under subsection (a) if the employer applying for the grant, loan, or tax credit demonstrates that one (1) or more of the following will occur if the grant, loan, or tax credit is not provided:

(1) Substantial job loss in Indiana.

(2) Harm to the environment.

(3) A significant economic impact to the state.

Sec. 9. (a) This section applies to contracts entered into or renewed on or after July 1, 2026.

(b) Each state agency within the executive department of state government shall ensure that all call center and customer service work performed for the agency is performed entirely within the United States.

(c) A contractor that performs call center or customer service work for the state shall not hire an individual to perform that work at a location outside the United States.

(d) Beginning July 1, 2028, every individual employed by a contractor to perform call center or customer service work for the state shall perform that work within the United States.

Sec. 10. This chapter does not permit withholding or denial of payments, compensation, or benefits to employees.

